

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jaimie Vernon	Team: Squad #4	CCRB Case #: 201509382	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 10/24/2015 5:30 AM	Location of Incident: Outside the 7-Eleven at 246 West 23rd Street; 10th Precinct stationhouse	Precinct: 10	18 Mo. SOL 4/24/2017	EO SOL 4/24/2017	
Date/Time CV Reported Sat, 10/24/2015 6:56 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 11/03/2015 1:49 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Pawel Wala	02162	940843	010 PCT
2. Officers			010 PCT
3. SGT Porfirio Ramos	4507	935561	010 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Michael Osullivan	13084	950990	010 PCT
2. POM Roger Ali	17851	946798	010 PCT
3. POM Kevin Martinez	27696	945958	010 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Pawel Wala	Abuse: Outside 246 West 23rd Street in Manhattan, PO Pawel Wala threatened to arrest § 87(2)(b)	
B.POM Pawel Wala	Abuse: Outside 246 West 23rd Street in Manhattan, PO Pawel Wala frisked § 87(2)(b)	
C.POM Pawel Wala	Abuse: Outside 246 West 23rd Street in Manhattan, PO Pawel Wala searched § 87(2)(b)	
D. Officers	Abuse: Outside 246 West 23rd Street in Manhattan, officers forcibly removed § 87(2)(b) to a hospital.	
E.SGT Porfirio Ramos	Abuse: Inside the 10th Precinct stationhouse, Sgt. Porfirio Ramos did not process § 87(2)(b) s complaint regarding officers.	

Case Summary

On November 3, 2015, the CCRB received the complaint of § 87(2)(b) referred by the IAB (referral no. 15-33072). On November 16, 2015, § 87(2)(b) provided an in-person statement (Board Review 01). § 87(2)(b)'s statement is merged with the investigation's findings in the following narrative:

On October 24, 2015, around 5:30AM, § 87(2)(b) was driven to his home at § 87(2)(b) in Manhattan by a non-city-commissioned cab driver, § 87(2)(b). § 87(2)(b) admitted to having drunk four shots of Hennessy in the hours prior to the incident. § 87(2)(b) explained that the fare was \$35, but § 87(2)(b) claimed that he had ordered a Lyft cab and intended to pay by credit card. When § 87(2)(b) took this to mean that § 87(2)(b) was refusing to pay his fare, he called 911 to report this. § 87(2)(b) asked § 87(2)(b) to drive him over to the 7-Eleven shop at 246 West 23rd Street so that he could withdraw some cash from the ATM. § 87(2)(b) agreed to this and drove § 87(2)(b) to the 7-Eleven, § 87(2)(b) on West 23rd Street, between Seventh Avenue and Eighth Avenue.

As § 87(2)(b) attempted to withdraw money from the ATM inside the 7-Eleven, four uniformed officers, PO Pawel Wala, PO Michael O'Sullivan, PO Kevin Martinez, and PO Roger Ali of the 10th Precinct, arrived at the 7-Eleven in response to § 87(2)(b)'s 911 call. When § 87(2)(b) exited the 7-Eleven, money in hand, and saw the officers, he went straight to § 87(2)(b) and threw the cash in § 87(2)(b)'s face. As it was a windy day, the cash blew into the street.

The officers then exited their vehicles and approached § 87(2)(b). § 87(2)(b) pleaded with the officers to leave him alone and told them several times that he had done nothing wrong and that he had always intended to pay § 87(2)(b). PO Wala asked § 87(2)(b) "Do you want to get arrested?" (**Allegation A**). When § 87(2)(b) continued to deny that he did anything wrong, PO Wala told § 87(2)(b) to turn around, which he did. PO Wala then rear-cuffed § 87(2)(b). After handcuffing him, PO Wala frisked § 87(2)(b)'s pants (**Allegation B**). He entered one of § 87(2)(b)'s pants pockets and retrieved his wallet (**Allegation C**). After reviewing § 87(2)(b)'s ID, PO Wala, in consultation with PO O'Sullivan and PO Martinez, decided that § 87(2)(b) had to be taken to a hospital as he was too intoxicated to be left alone. PO O'Sullivan called for an ambulance, which arrived to take § 87(2)(b) to the § 87(2)(b) (**Allegation D**). § 87(2)(b) was released from the hospital shortly after arrival and went home on his own.

When § 87(2)(b) arrived home, he changed his clothes and proceeded to the 10th Precinct stationhouse. When he walked to the stationhouse, he found PO Wala and PO O'Sullivan standing in front of the stationhouse entrance. One of the officers attempted to "grab" § 87(2)(b) as he approached, but he avoided them and went inside. He went to the front desk and spoke with Sgt. Porfirio Ramos, telling him that he wanted to file a complaint against the officers who forced him to go to a hospital. Sgt. Ramos told § 87(2)(b) "You want to file a report? No!" and refused to process § 87(2)(b)'s complaint (**Allegation E**). § 87(2)(b)

§ 87(2)(b) then left the stationhouse and returned home. He was not summonsed or arrested for this incident.

This case was originally assigned to Inv. Palacios. Upon his departure from the agency, it was re-assigned to the undersigned investigator on January 4, 2016.

Video Footage

Video footage was requested from the 7-Eleven. However, the particular camera angle did not capture any portion of the incident.

Mediation, Civil and Criminal Histories

§ 87(2)(b) rejected medication. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s first and only CCRB complaint.
- PO Wala has been a member of the service for 10 years, and this is his second CCRB complaint. He is currently a subject officer in case 201509104, in which he is alleged to have used § 87(2)(g) a taser, against a victim, and to have threatened to arrest the victim. That case is still under investigation.
- Sgt. Ramos has been a member of the service for 11 years, and there are no substantiated allegations against him. In case 200602146, a stop allegation was unsubstantiated. § 87(2)(g)

Potential Issues

§ 87(2)(b)'s medical records from the § 87(2)(b) were subpoenaed, but no results matching § 87(2)(b)'s date of birth were found in the hospital's system. This negative result was confirmed over the phone. § 87(2)(g)

Findings and Recommendations

Allegation A – Abuse of Authority: Outside 246 West 23rd Street in Manhattan, PO Pawel Wala threatened to arrest § 87(2)(b)

§ 87(2)(b) alleged that when he tried to explain to the officers that he was in the process of paying § 87(2)(b) the cab fare and that he did nothing wrong, PO Wala told him, "Do you want to get arrested?" (Board Review 01). § 87(2)(b) admitted to throwing the cash at § 87(2)(b) instead of paying him directly, with the cash being blown into the street.

PO Wala admitted to telling § 87(2)(b) that he could be arrested if he did not pay the cab fare directly to § 87(2)(b) explaining that § 87(2)(b)'s throwing the cab fare at § 87(2)(b) did not suffice as payment (Board Review 03).

PO Martinez stated that he himself explained to § 87(2)(b) soon after he and PO Ali arrived at the location that if he did not pay the cab fare, the officers would have to arrest him for Theft of Services (Board Review 04).

PO O'Sullivan also affirmed that the officers explained to § 87(2)(b) that if he did not pay the fare to § 87(2)(b) he would be guilty of Theft of Services and, thus, could be arrested (Board Review 05).

§ 87(2)(b) recalled hearing an officer threaten to arrest § 87(2)(b) but stated that it was because § 87(2)(b) was screaming. He did not know if an officer threatened to arrest § 87(2)(b) for throwing the cash at him (Board Review 06).

A person is guilty of Theft of Services, subsection 3, when they obtain transportation but attempt to avoid lawful payment of the service by "force, intimidation, stealth...or an unjustifiable failure or refusal to pay" (Board Review 07).

§ 87(2)(g)
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Allegation B – Abuse of Authority: Outside 246 West 23rd Street in Manhattan, PO Pawel Wala frisked § 87(2)(b)

Allegation C - Abuse of Authority: Outside 246 West 23rd Street in Manhattan, PO Pawel Wala searched § 87(2)(b)

It is undisputed that PO Wala frisked § 87(2)(b) after handcuffing him. § 87(2)(b) § 87(2)(b) alleged that after he threw the cash in § 87(2)(b)'s face, PO Wala, PO O'Sullivan, PO Martinez, and PO Ali exited their vehicles. PO Wala approached him and, after several of § 87(2)(b)'s protests, handcuffed him. After handcuffing § 87(2)(b) § 87(2)(b) PO Wala frisked his pants pockets. He then entered one of § 87(2)(b)'s pants pockets and retrieved his wallet to find his ID (Board Review 01).

PO Wala admitted to frisking § 87(2)(b) after he was handcuffed, explaining that, by this point, he had already decided that § 87(2)(b) would either be arrested for the Theft of Service or that he would be taken to a hospital to sober up. He frisked § 87(2)(b) in preparation to be transported to either the stationhouse or to a hospital. He added that § 87(2)(b) § 87(2)(b) had been yelling unintelligibly and waving his arms carelessly, making PO Wala worry that he might accidentally strike someone. However, PO Wala made no observations that § 87(2)(b) was armed. He denied entering any of § 87(2)(b)'s pockets. He also explained that the officers had already asked § 87(2)(b) if he wished to press charges against § 87(2)(b) and that § 87(2)(b) said he did not (Board Review 03).

PO O’Sullivan affirmed that an officer (he did not remember who) frisked § 87(2)(b) to allay the officers’ fears because § 87(2)(b) was yelling and carelessly waving his arms. He did not see the officer search § 87(2)(b)’s pockets. He heard § 87(2)(b) tell the officers beforehand that he did not want them to arrest § 87(2)(b) (Board Review 05).

PO Ali saw PO Wala give § 87(2)(b) a general pat-down, but did not see him enter of the pockets. He stated that he did not believe § 87(2)(b) posed a threat to his or the other officers’ safety despite his behavior. He did not make any observations that § 87(2)(b) might have been armed. PO Ali confirmed that § 87(2)(b) told the officers that he did not wish for them to arrest § 87(2)(b) prior to PO Wala handcuffing § 87(2)(b) (Board Review 08).

PO Martinez did not recall if § 87(2)(b) was frisked or searched by any officer in this incident. He confirmed that the officers had a general worry that § 87(2)(b) posed a danger to himself and to others because of his level of intoxication, his shouting, and his aggressive behavior toward the cab driver. However, he also made no specific observation that § 87(2)(b) was armed. He did not know if the other officers had asked § 87(2)(b) if he wanted them to arrest § 87(2)(b) (Board Review 04).

§ 87(2)(b) did not know if § 87(2)(b) was frisked or searched as he left the scene shortly after § 87(2)(b) was handcuffed. He confirmed that he told the officers that he did not wish for them to arrest § 87(2)(b) (Board Review 06).

According to NYPD Patrol Guide procure 208-03, “Arrests - General Processing”, an officer can frisk someone who has already been placed under arrest in preparation to be transported to a department facility, such as a stationhouse, for arrest processing (Board Review 09).

However, the Patrol Guide procedure regarding Aided Cases, 216-01, provides no directive that officers frisk an aided person prior to the aided person being allowed to be put inside an ambulance bus, as an aided person is not in police custody (Board Review 10).

In *People v. Debour*, the New York State Court of Appeals ruled that an officer can only frisk a person who is not already under arrest if the officer has a reasonable suspicion that the person is armed (40 N.Y. 2d 210, 1976; Board Review 11). In *People v. Reid*, the same court ruled that just because a suspect is found guilty of an offense for which they could have been arrested, an officer cannot frisk them on the grounds that the frisk is incident to an arrest unless the officer has actually placed the suspect under arrest (24 NY3d 615, 2014; Board Review 12).

§ 87(2)(g)

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[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

Allegation D – Abuse of Authority: Outside 246 West 23rd Street in Manhattan, officers forcibly removed § 87(2)(b) to a hospital.

It is undisputed that § 87(2)(b) was removed to the § 87(2)(b) because the officers who responded believed he was highly intoxicated. § 87(2)(b) did not dispute that he had drunk heavily before the incident, but asserted that he was fully aware of his actions during the incident. He admitted to throwing the money at § 87(2)(b) and to raising his voice and cursing at the officers. He admitted telling the officers and the EMTs “I didn’t do anything” and “I wanna go home” multiple times. He also admitted to keeping his hands above his head throughout the incident in a gesture of surrender (Board Review 01).

All of the officers stated that § 87(2)(b) emitted a strong odor of alcohol during the incident and that he was behaving in an aggressive, belligerent, and unreasonable manner, shouting unceasingly and waving his arms above his head. PO Wala and PO Martinez stated that they asked § 87(2)(b) several times to calm down, but he did not (Board Review 03 and Board Review 04). The officers all stated that they believed that § 87(2)(b) was too intoxicated to be able to get home safely and that he posed a serious danger to himself and to others in his condition.

§ 87(2)(b) corroborated that § 87(2)(b) was screaming at the officers and refused to put his hands down when they asked him to multiple times (Board Review 06).

The NYPD Patrol Guide Procedure regarding aided cases, cited above, states that if officers come across a person who is sick, injured, or unable to care for himself or herself, officers must give that person medical aid (Board Review 10). The Patrol Guide procedure regarding emotional disturbed persons (EDPs) adds that if officers find a mentally ill or temporarily deranged person who poses an immediate threat to everyone’s safety, officers must call for an ambulance to respond to the location immediately (Board Review 13).

§ 87(2)(g)

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Allegation E – Abuse of Authority: Inside the 10th Precinct stationhouse, Sgt. Porfirio Ramos did not process § 87(2)(b) s complaint regarding officers.

§ 87(2)(b) alleged that when he went to the 10th Precinct stationhouse after he was released from the § 87(2)(b), he spoke to an officer at the front desk and told him that he wanted to make a complaint about the officers who had him removed to the hospital. The officer he spoke with said, “You want to file a complaint? No!” and refused to take down § 87(2)(b) s complaint. § 87(2)(b) described this officer as a white male with receding brown hair standing about 5’10” (Board Review 01).

Sgt. Ramos, a Hispanic male of similar height, was the desk sergeant at the time of § 87(2)(b) s arrival at the stationhouse. However, he stated that he did not recall § 87(2)(b) coming to him in the stationhouse on October 24, 2015. He did not recognize § 87(2)(b) when his CCRB photo was presented to him. While he remembered hearing about an incident at a 7-Eleven where an intoxicated individual was removed to a hospital, he did not see that individual come to the stationhouse on that date. He did not recall any civilian coming to the stationhouse on that date to make a complaint about officers (Board Review 14).

§ 87(2)(g)

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Squad: _____

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date